

4.	25CV0172	DONALD L. AUSTIN ET AL VS. GREG HANSEN ET AL
MOTION FOR CLARIFICATION AND MOTION FOR ORDER COMPELLING PLAINTIFF'S COMPLIANCE		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

This matter stems from Defendants' two motions filed on May 11, 2026: 1) Motion for Clarification Regarding RFA/RFP Set Two with Joint Declaration for Additional Discovery; 2) Motion for Order Compelling Plaintiff's Compliance with the Court's January 27, 2026 Joinder Order; Request for Sanctions or Other Appropriate Relief.

MOTION FOR CLARIFICATION

Defendant asserts that the Court's tentative ruling dated April 24, 2026 granted relief as to multiple RFAs and RFPs and awarded Defendant costs for bringing their motion. However, the April 27, 2026 Minute Order stated the Court denied the request to deem matters admitted as to Defendant's Requests for Admission, Set Two, and declined to compel additional production of Set Two, but did not state a reason for that ruling. Defendant seeks clarification as to whether this denial was on the basis of failing to attach a declaration for additional discovery pursuant to Code of Civil Procedure § 2033.050, and if so, to request the court issue a supplemental ruling or grant Defendant leave to re-serve the Request for Admission with a declaration for additional discovery.

Plaintiff's Response to Defendant's Motion for Clarification Regarding RFA/RFP Set Two with Joint Declaration for Additional Discovery was late-filed on July 6, 2026 in violation of Code of Civil Procedure § 1005 which requires all opposing papers be filed at least nine court days before the hearing. The Court in its discretion pursuant to California Rules of Court, Rule 3.1300 has considered Plaintiff's late-filed opposition. Plaintiff asserts that Defendant's Second Set of Requests for Admission exceeded the statutory limit of 35 wherein he properly objected to the requests exceeding this limit and Defendants now seek to bypass the procedural requirements of Code of Civil Procedure § 2033.290. Plaintiff asserts the volume of discovery Defendant seeks is disproportionate to the needs of the case.

Although Defendant's motion is on its face seeking clarification, it is in substance seeking reconsideration of the Court's April 27, 2026 ruling. A motion styled as "clarification" is subject to the same requirements as a motion for reconsideration when it effectively seeks to revisit or modify a prior ruling. Code of Civil Procedure § 1008 requires there be new or different facts, circumstances, or law in order to make a request for reconsideration. Defendant has failed to do so here. The Court confirms its ruling and denies Defendant's motion for clarification.

MOTION FOR ORDER COMPELLING COMPLIANCE

Defendant alleges Plaintiff has failed to comply with the Court's January 27, 2026 joinder order. Defendant seeks orders 1) compelling Plaintiff to comply with the court's order within 10 calendar days; 2) requiring Plaintiff to file a Proof of Service and Joinder of the necessary property owners; 3) consider the effect of Plaintiff's continued noncompliance on any pending request for coercive or enforcement relief; and 4) consider sanctions or other appropriate relief based on Plaintiff's failure to comply with a direct court order, the unnecessary burden placed on Defendants, and the prejudice created by forcing Defendants to continue litigating without all necessary parties before the Court.

Defendant's request for sanctions is procedurally defective for failing to include a memorandum of point and authorities and a declaration setting forth facts supporting the amount of monetary sanctions sought. Code of Civil Procedure § 2023.040.

Plaintiff's opposition was late-filed on July 6, 2026 in violation of Code of Civil Procedure § 1005 which requires all opposing papers be filed at least nine court days before the hearing. The Court in its discretion pursuant to California Rules of Court, Rule 3.1300 has considered Plaintiff's late-filed opposition. Plaintiff asserts he has completed the court-ordered joinder by filing the Second Amended Complaint, serving two of the three parties required to be joined, and is engaged in active settlement discussions with the third party thereby rendering Defendant's motion moot.

Per the Court's order of January 27, 2026, the Court ordered Plaintiff to serve the other two property owners. Despite Plaintiff being in settlement negotiations with the third party, service is not complete and Plaintiff is not in compliance with the Court's order. The Court finds the filing of the Second Amended Complaint has rendered Defendant's request moot. Defendant's motion for an order compelling compliance is denied. Defendant's motion for sanctions is denied without prejudice. Plaintiff shall serve the remaining party within ten (10) days of the Court's order.

TENTATIVE RULING #4:

DEFENDANT'S MOTION FOR CLARIFICATION IS DENIED. DEFENDANT'S MOTION FOR ORDER COMPELLING PLAINTIFF'S COMPLIANCE IS DENIED AS MOOT. DEFENDANT'S REQUEST FOR SANCTIONS IS DENIED WITHOUT PREJUDICE.

PLAINTIFF IS ORDERED TO SERVE THE REMAINING PARTY WITHIN 10 DAYS OF THE COURT'S ORDER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

July 10, 2026
Dept. 9
Civil Tentative Rulings

RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.